

M/s Baba Bar & Angle (P) Ltd. v. P.V.V.N.L.

High Court of Judicature at Allahabad · Division Bench · 24 March 2023 · WRIT - C No. 15325 of 2016 · **Writ petition dismissed for want of prosecution.**

HEADNOTE

A challenge to additional security demanded under Para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed for want of prosecution. An earlier Division Bench had connected the matter with a 2009 writ and restrained the licensee from demanding additional security until further orders, following a similar interim in Supreme Ceramics; the Court never decided the demand on merits.

FACTUAL SUMMARY

M/s Baba Bar & Angle (P) Ltd. challenged a 7 July 2015 demand notice of Paschimanchal Vidyut Vitran Nigam Limited seeking additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005. On 18 April 2016 the Court connected the matter with Writ Petition (C) No. 51884 of 2009 and, following a similar interim in Supreme Ceramics Limited, restrained demand of additional security until further orders. After pass-overs on illness slips, none appeared for the petitioner even on revised call on 24 March 2023.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.20

additional security

HOLDING

The writ challenging the 7.7.2015 additional-security demand under Para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed for want of prosecution; the Court did not decide whether the demand was lawful, and the 18.4.2016 interim restraint did not become a merits holding. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ADDITIONAL SECURITY DEMANDED UNDER PARA 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005 BY THE NOTICE DATED 7.7.2015 WAS LAWFUL

Dismissed for want of prosecution; earlier interim only restrained demand until further orders. ¶ 1